Example 4: The fruit of the poisonous tree

Consider the problem of policemen tapping phones. We cannot assume that policemen or their masters are benign people who mean well. We need tight restrictions upon the state apparatus for surveillance.

Suppose a policeman engages in illegal surveillance which *successfully* identifies a criminal. Should we condone the violation of laws governing surveillance, on the grounds that this illegal activity yielded a good result?

Under the 'fruit of the poisonous tree' doctrine in the US, all illegally gathered evidence is inadmissible in court, and policemen who violate laws governing surveillance are personally subject to punishment. Whether illegal surveillance found the criminal or not, the fruits of this poisonous tree cannot be used in court.

This is the only way to create incentives for policemen to live within the rules. If policemen were benign, we would not need laws governing surveillance, or we could have overlooked the occasional blemish where a well-intentioned policeman was so caught up in the pursuit of a criminal that due process was violated. Public choice theory teaches us that enforcement personnel are not benign. Strong limitations are required on their behaviour.

The lack of this doctrine in India—the implicit belief that policemen are benign persons who mean well—is a major source of arbitrary power and thus the abuse of power by enforcement agencies in India.

Who will mind the minder?

Without the toolkit of public choice theory, we tend to think that the solution to one failed bureaucracy is to set up another bureaucracy. We are willing to believe that the Lok Pal will be better than the CBI. We are willing to think that a new independent agency which reviews official statistics will be better than the Central Statistics Office (CSO).